

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, July 30, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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18CV-04324	Joayne Melo vs David Nervino et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED to September 28, 2026, at 8:15 a.m. in Courtroom 8 to allow time for the easement deed to be recorded and a request for dismissal to be filed, pursuant to the Response to the Order to Show Cause filed by attorney Stephen C. Seto on July 24, 2026.

24CV-03179	Jesus Huerta, et al. vs ASAP Executive Courier Service Inc
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Motion to Compel Deposition of Plaintiff Isabel Cristina Resendiz Portillo

Defendant's motion to compel the further deposition of Plaintiff Isabel Portillo is DENIED.

The record shows that Defendant unilaterally suspended the deposition, without proper cause, over Plaintiff's objection. Code of Civil Procedure section 2025.470 only allows for a deposition to be suspended by stipulation of all the parties unless it is suspended to

allow for a party to move for a protective order under section 2025.420. (Code Civ. Proc. § 2025.470).

Here, the reason for suspending the deposition appears to have been Defendant's preference. Despite a delayed start, Plaintiff appeared for her deposition and was willing to proceed. Absent an agreement between the parties to suspend the deposition and to continue it to another day, or to suspend the deposition so that a party could seek a protective order, the deposition should have continued.

It was Defendant's deposition, which they had the right to control. However, Defendant did not have the right to conduct the deposition in a manner that would subject Plaintiff to harassing or oppressive tactics. To notice a deposition, commence the deposition, suspend the deposition without valid reason over counsel's objection, and then demand Plaintiff subject herself to a further deposition is unreasonable.

The Court finds good cause not to issue sanctions. As such, all requests for monetary sanctions are **DENIED**.

25CV-00442 Antonio Rojas vs Twin Pack Garage Mobile Services, LLC, et al.

Motion for Leave to File Cross Complaint

Defendant's unopposed motion for leave to file a cross-complaint is GRANTED.

Defendant is to file their proposed cross-complaint within ten (10) days of this court's order.

26CV-03346 Petition of: Sharon Rucker

Order to Show Cause Re: Name Change

Appearance required. Proof of publication of the petition was filed July 27, 2026. Absent objection at the time of the hearing or legal cause why Petitioner should not be permitted to change her name, the petition will be GRANTED.

26CV-03358 Petition of: Mylinh Chanmyarath

Order to Show Cause Re: Name Change

Appearance required. Appear to provide proof of publication.

26CV-03367 Petition of: Jose Nanez

Order to Show Cause Re: Name Change

Appearance required. Appear to provide proof of publication.